

Regulation of Fee Structure in Private Unaided School in the State

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State of Andhra Pradesh - Act

Regulation of Fee Structure in Private Unaided School in the State

ANDHRA PRADESH

India

Regulation of Fee Structure in Private Unaided School in the State

Rule REGULATION-OF-FEE-STRUCTURE-IN-PRIVATE-UNAIDED-SCHOOL-IN-THE-STATE of 2009

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Regulation of Fee Structure in Private Unaided School in the State

Published vide Notification G.O. Ms. 91, Education (SE:PS-I), 6th August, 2009 Published in Andhra Pradesh Gazette No. 37, Part 1, weekly, dated 10-9-2009.

In exercise of the powers conferred by Section 7 of the Andhra Pradesh Educational Institutions (Regulation of Admission and Prohibition of Capitation Fee) Act, 1983 (Andhra Pradesh Act No. 5 of 1983) the Government of Andhra Pradesh hereby regulate the fee in private unaided schools in the State as follows:

Private unaided schools may levy and collect the following fees:

1.

Fees:

(a)

One time fees:

- (i)
Application fee not exceeding Rs. 100/-
- (ii)
Registration fee not exceeding Rs. 500/-
- (iii)
Refundable non interest bearing Caution Deposit not exceeding Rs. 5,000/- and the same shall also be submitted to DFRC with due justification for approval.
- (iv)
No other fee by any name, whatsoever, shall be charged as a onetime measure.
- (b)
Tuition fees:
 - (i)
Tuition fee shall be fixed basing on the salaries paid to the teachers and staff, retirement benefits, running expenditure, infrastructure and facilities available including any Special fee, for any specific purpose and Development fee.
 - (ii)
The tuition fee shall be collected in not less than 3 instalments.
 - (iii)
Any activity which is not directly linked to education, if provided, shall be optional to the student and shall not be built as part of the tuition fee.
 - (c)
User chargers:
 - (i)
The school shall necessarily notify a minimum of 3 shops in the town where books/note books/stationery are available. Sale of books/note books/Stationery at School Counter, if any shall be made at a Discount.
 - (ii)
It shall not be compulsory to purchase uniforms from the designated shops or Sales Counter of the school. The student shall have option to purchase the Uniform from the outside outlets of his choice as per the specifications prescribed by the School.
 - (iii)
The transportation fee shall be fixed with a slab of 5 KMs.
 - (iv)
Private Schools are advised not to run school beyond stipulated time. In case extra classes are held, it should be optional for children to attend extra classes and no extra fee shall be charged for this.
 - (v)
Private Schools are advised against issuing advertisements about their results in News Papers. In case they do so, the cost of advertisement shall not be included in the fee structure.
 - (vi)
Interim Measure of fee for the academic year 2009-10: Unit District Fee Regulatory Committee (DFRC) approves fee for the school for the academic year of 2009-10, the school shall charge fee as was charged during 2008-09 academic year.
- 2.
Separate Account:
 - (i) Separate Account shall be maintained for collection of different type of fees and each item of expenditure.
 - (ii)
The schools which have more than one branch under the same management shall maintain accounts in respect of branch for each item of expenditure separately.
- 3.
Private Unaided Schools not to Charge Fee more than the Fee Fixed by the DFRC:
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 - (i)
DFRC shall approve the fee for each private unaided school within its jurisdiction.

(ii)

If schools collect fee more than the fee approved by the DFRC, it shall be treated as capitation fee and Management shall be liable for action under the provisions of Andhra Pradesh Educational Institutions (Regulation of Admissions and Prohibition of Capitation Fee) Act, 1983. The recognition granted to the school and NOC issued shall be withdrawn after giving due notice.

4.

Fee Regulatory Committee:

- The District Fee Regulatory Committee (DFRC) comprising of

(a)

the Dist. Collector or his nominee not below the rank of Joint Collector,

(b)

the District Educational Officer concerned and

(c)

the District Audit Officer/Auditor of Pay & Accounts Officer shall be constituted for approving fee structure for all private unaided in the respective District.

5.

Governing Body:

- (i) The Governing Body of school shall submit audited statements along with proposed fee structure to District Fee Regulatory Committee before the 30th of September and District Fee Regulatory Committee shall accord approval after giving opportunity of being heard to management of private unaided school and the representation of parents, before the 31st December in respect of the fee structure for the next academic year.

(ii)

The Governing Body of the school shall be constituted as per G.O. Ms. No. 1, Education Department, dated 1-1-1994.

6.

Validity of the Fee Structure:

- The fee structure approved by District Fee Regulatory Committee shall be valid for a period of 3 academic years but Management may increase fee every year based on the increase in Consumer Price Index. However, District Fee Regulatory Committee also reserves the right to review its decision on reasonable grounds suo-motto or on representation from the parents or management of the school.

7.

Appellate Authority:

- An appeal against the decision of District Fee Regulatory Committee shall lie to the Commissioner and Director of School Education.

8.

General:

-(i) Private Management shall not put names of schools such as IIT Olympiad/Concept/e-Techno/e-shastra.

(ii)

The Committee constituted in G.O. Rt. No. 376, Education (SE:P.S.I) Department, dated 18-6-2009 shall submit detailed guidelines for the guidance of the District Fee Regulatory Committee, and formats for submission of statement by Management to District Fee Regulatory Committee.

9.

[Exemption

[Inserted by G.O. Ms. No. 3, Education (SE. PS. I), dated 5-1-2010.]

- The Private Unaided Schools which charge tuition fee of Rs. 12000/- (Rupees Twelve thousands only) or less annually shall be exempted from these orders].

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